



CHAPTER cciii.

An Act to repeal section 17 of the West Bromwich Corporation Act 1900 and section 4 of the West Bromwich Improvement Amendment Act 1865 and to enact other provisions in lieu thereof and for other purposes. A.D. 1903.

[11th August 1903.]

WHEREAS the borough of West Bromwich in the county of Stafford (hereinafter referred to as “the borough”) is a county borough under the government of the mayor aldermen and burgesses of the borough (hereinafter called “the Corporation”) who acting by the council are the urban sanitary authority of the borough :

And whereas by the West Bromwich Corporation Act 1900 (hereinafter referred to as “the Act of 1900”) the Corporation were empowered notwithstanding anything contained in the Tramways Act 1870 or in any other Act or Order to the contrary to work any tramways which for the time being may belong to or be in lease to the Corporation or over which they may have running powers :

And whereas by section 17 of the Act of 1900 the Corporation were authorised to reconstruct any of such tramways and to construct electric works for the purpose of working such tramways by mechanical power and it was by such section provided that in reconstructing or altering any tramway under the provisions thereof where a less space than nine feet six inches would intervene between the outside of the footpath on either side of the road and the nearest rail of the tramway the Corporation should not place such rail nearer to the footpath than it was at the time of the passing of the said Act :

And whereas the Corporation have proceeded to reconstruct certain tramways within the borough and to make such alterations

A.D. 1903. — thereof as are necessary and expedient for working the same by electrical power and in the course of such reconstruction and alteration it has been found impracticable to comply with the provisions of the said section :

And whereas it is therefore expedient to repeal the provisions of section 17 of the Act of 1900 and that other provisions should be enacted in lieu thereof as hereinafter provided :

And whereas by section 4 of the West Bromwich Improvement Amendment Act 1865 (hereinafter referred to as “ the Act of 1865 ”) it was enacted that the West Bromwich Improvement Commissioners (who were the predecessors in title of the Corporation and are hereinafter referred to as “ the commissioners ”) might by agreement with the guardians or overseers of the poor of the parish of West Bromwich (hereinafter respectively referred to as “ the guardians ” and “ the overseers ”) erect a fence around or make streets through and lay out for building with all necessary sewers and other conveniences a certain allotment of land belonging to the guardians or overseers and all expense thereby incurred by the commissioners together with interest thereon at the rate of five pounds per cent. per annum should be and the same were thereby charged upon such land and were to be repaid out of the net rents or other proceeds arising from such land or in case the same should be sold at the request of the guardians or overseers then the balance of such expense and interest (if any) should be repaid out of the net proceeds arising from such sale and subject thereto the commissioners should hold the said land and the annual and other proceeds thereof including the income arising from the investment of moneys produced by the sale thereof upon trust for the guardians and overseers to the intent that they might apply the income thereof for the advantage of the aged poor or children of the poor whether paupers or not of West Bromwich in some manner for which poor rates are not applicable with power to the commissioners from time to time to let such land or any part thereof for any period not exceeding seven years in possession or with the consent of the said guardians and overseers upon building leases on the conditions thereafter contained :

And whereas neither the commissioners nor the Corporation have fenced in the said land nor have they let any portion thereof either for a period of years at the best rent obtainable or on building leases and disputes have arisen from time to time between the commissioners the Corporation and the guardians and overseers as to the proper application by the commissioners and the Corporation of the said land and otherwise in reference thereto :

And whereas in order to put an end to such disputes it is expedient that the provisions hereinafter contained should be enacted : A.D. 1903.

And whereas it is expedient that the Corporation be authorised to borrow money for the purposes of this Act :

And whereas an absolute majority of the whole number of the Council at a meeting held on the third day of December one thousand nine hundred and two after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the Free Press a local newspaper published and circulating in the borough such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the district fund and general district rate or other the public funds or rates under the control of the Corporation :

And whereas such resolution was published twice in the Free Press a newspaper published and circulating in the borough and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Council at a further special meeting held in pursuance of a similar notice on the seventeenth day of January one thousand nine hundred and three being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas the owners and ratepayers of the borough by resolution in the manner provided in the Third Schedule of the Public Health Act 1875 consented to the promotion of the Bill for this Act :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited as the West Bromwich Corporation Act 1903. Short title.

2. Section 17 of the Act of 1900 is hereby repealed and in lieu thereof be it enacted as follows :— Repeal of section 17 of Act of 1900 and provisions in lieu thereof.

“The Corporation may re-construct any tramways purchased leased or acquired by them upon a gauge of three feet six inches and make such alterations thereof as may be necessary

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or expedient for working the same by mechanical power and for the purpose of working any of the tramways for the time being belonging or leased to the Corporation by mechanical power the Corporation may place construct erect lay down make and maintain on above or below the surface of any streets or roads posts brackets electric conductors wires apparatus conduits cables tubes and openings and may with the consent of the owners and occupiers of any houses or buildings affix to such houses or buildings and maintain posts brackets electric conductors wires and apparatus and may supply electrical energy from any generating station constructed under powers conferred or to be conferred upon the Corporation Provided that in the exercise of the powers of this section no rail shall (except with the consent of the Board of Trade) be so laid that a less space than nine feet six inches shall intervene between it and the outside of the footpath on either side of the road if one third of the owners or one third of the occupiers of the premises abutting on the place where such less space shall intervene shall express their objection thereto by writing under their hands addressed and delivered to the Corporation within three weeks after receiving from the Corporation notice in writing of their intention to exercise the powers aforesaid ” :

Provided also that section 20 of the Act of 1900 the marginal note of which is “ For the protection of the London and North Western and Great Western Railway Companies ” shall apply to the provisions contained in this section as if the same had been specially re-enacted in this Act.

Repeal of
section 4 of
Act of 1865.

3. Section 4 of the West Bromwich Improvement Amendment Act 1865 is hereby repealed.

Vesting of
certain land
in Corpora-
tion.

4. From and after the passing of this Act all right title authority or claim of right title or authority of the guardians or overseers in the piece or parcel of land situate in the parish of West Bromwich in the county of Stafford bounded on the north by Sandwell Road on the east by land of Edward Caddick and on the south by land of the Corporation and known as “ the Cronehills ” and containing four acres or thereabouts shall cease and determine and thereafter all rights powers authorities privileges and liabilities which they or either of them have exercised or laid claim to exercise therein and all right claim or title in or over or in respect of such land shall be transferred to and vest in the Corporation as the urban sanitary authority for the borough.

5. The Corporation may use the said land for any of the purposes of the Public Health Acts or of any other public or local Act in force in the borough of which the Local Government Board (hereinafter referred to as "the Board") may from time to time approve subject to such conditions as the Board may prescribe and may with the approval of the Board sell any portion or portions of the said land which they shall not require for such purposes.

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User and sale
of land.

6. The consideration for such transfer shall be the payment within one calendar month from the passing of this Act by the Corporation to the Official Trustees of Charitable Funds of the sum of two thousand pounds with interest thereon at the rate of five pounds per cent. per annum from the fourteenth day of October one thousand nine hundred and one to the date of payment to be held by the said Official Trustees as capital endowment in trust for charity to be called "The West Bromwich Charity" (hereinafter referred to as "the charity").

Considera-
tion for such
transfer.

7. The charity shall be administered and managed by the body of trustees hereinafter constituted subject to and in conformity with the provisions herein contained.

Management
of charity.

8. There shall be appointed by the guardians of the poor of the West Bromwich Union (hereinafter referred to as "the guardians") by resolution recorded on their minutes ten persons who are ratepayers of the parish of West Bromwich as trustees of the charity.

Appointment
of trustees.

9. The term of office of a trustee shall be six years. Of the trustees first appointed including trustees appointed to fill casual vacancies one half to be determined by lot if necessary shall go out of office at the end of three years from the date of appointment but shall be eligible for re-election.

Term of
office of
trustees.

10. A trustee becoming a bankrupt or compounding with his creditors shall thereupon cease to be a trustee and in such case or if a trustee shall die or desire to be discharged from the trust or refuse or is unable to act therein or is incapable of acting therein or shall cease to be a ratepayer of the parish of West Bromwich or shall be absent from all meetings of the trustees during a period of one year except in case of illness or for some reason approved by the trustees the guardians shall as soon as may be appoint some other person being a ratepayer of the parish of West Bromwich a trustee in the place of the trustee whose office is so vacated. The person so appointed shall hold office until the time when the trustee

Filling up
casual va-
cancies.

A.D. 1903. in whose place he is appointed would regularly have gone out of office and he shall then go out of office.

Evidence of appointment of trustee.

11. A copy of the resolution of the guardians appointing a trustee or trustees of the charity to which the seal of the guardians shall be affixed may be given and shall be received as evidence in all courts and proceedings of the due and valid appointment of such trustee or trustees.

Disqualification for benefit.

12. No person who is a trustee or is the husband wife or child of a trustee shall receive any benefit from the charity.

Meeting of trustees.

13. The trustees shall meet once in every quarter at least.

Election of chairman.

14. The trustees shall at their first meeting and at the first meeting after every triennial appointment of trustees elect one of their number as chairman and he shall continue to hold such office until the next triennial appointment of trustees if he so long continues to be a trustee. If the chairman ceases to be a trustee or refuses to act before the expiration of the term of office the trustees shall at their next meeting after the occurrence of the vacancy elect another chairman.

Quorum of trustees.

15. There shall be a quorum when three trustees are present at any meeting. Pending any vacancy the trustees for the time being not being less in number than a quorum may act for all purposes in the administration of the charity.

Special meeting.

16. The chairman or any two trustees may at any time summon a special meeting for any cause that seems to them sufficient.

Notice of meetings.

17. Notice in writing of every meeting whether general special or adjourned shall be delivered or sent through the post to each trustee by the secretary or by some other person acting under the direction of the trustees or in the case of a special meeting by or under the direction of the person or persons summoning the meeting three clear days at least before the date of the meeting so far as in the case of an adjourned meeting the interval between the original and adjourned meetings will permit. Every notice of meeting shall state the place day and hour of the meeting and every notice of a special meeting shall further state the matters to be discussed thereat.

As to voting.

18. Every matter shall be determined by the majority of the trustees present and voting on the question. The acting chairman shall have a casting vote whether or not he shall have previously voted on the same question but no trustee shall in any other circumstances give more than one vote.

19. A minute book and books of account shall be provided and kept by the trustees The accounts of the charity shall annually be laid before the said guardians and the Charitable Trusts Amendment Act 1855 shall apply with the substitution in section 44 of the guardians for the vestry and for the churchwardens.

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Minutes and accounts.

20. The trustees may appoint a secretary in matters connected with the administration of the charity at a salary to be approved by the Charity Commissioners.

Appointment of secretary.

21. Within the limits herein prescribed the trustees shall have full power from time to time to make regulations for the conduct of their business and for the management of the charity and such regulations shall be binding on all persons affected thereby.

Conduct of business.

22. The Corporation shall pay the Parliamentary and other costs charges and expenses incurred by the guardians in connection with the Bill for this Act to an amount not exceeding fifty pounds and any further costs charges and expenses incurred by the guardians of and incidental to the Bill for this Act (so far as the same are not hereinbefore provided for) and all the proper costs charges and expenses of and incidental to the administration and management of the charity shall be defrayed by the trustees out of the income thereof.

Costs of management.

23. The clear yearly income of the charity shall be applied by the trustees for purposes not being educational purposes for the advantage of the deserving poor or children of the poor whether paupers or not of the parish of West Bromwich Provided that the funds of the charity shall in no case be applied directly or indirectly in relief of the rates of the parish.

Purposes for which income to be applied.

24. The appropriation of the benefits of the charity shall be made by the trustees from time to time in the exercise of their discretion at meetings of their body and not separately by any individual trustee or trustees The trustees shall be bound in appropriating the benefits of the charity to have regard to the wants of the poor of the parish of West Bromwich and to satisfy themselves in each case that the beneficiaries are in respect of poverty and character deserving of help.

Appropriation of benefits of charity.

25. No trustee acting as secretary or in any other capacity in respect of the charity shall receive any salary or remuneration from the funds of the charity No trustee shall for his own benefit or for the benefit of any other person either directly or indirectly hold

Trustee not to be remunerated.

A.D. 1903. or occupy any land of the charity or be engaged in the supply of work or goods at the cost of the charity.

Establishment of schemes.

26. The Chancery Division of the High Court of Justice or the Charity Commissioners may from time to time in the exercise of their ordinary jurisdiction establish schemes for the alteration of any of the provisions of sections 6 to 25 of this Act as if those provisions had been made by the founder in the case of any charity having a founder.

Settlement of questions.

27. Any question as to the construction of the said sections 6 to 25 or as to the regularity or the validity of any acts done or about to be done under those sections shall be determined conclusively by the Charity Commissioners upon such application made to them for the purpose as they may think sufficient.

Power to borrow.

28. The Corporation may independently of any other borrowing power borrow at interest any sum or sums of money for the purposes and to the amount hereinafter mentioned (that is to say) :—

(1) For the purchase of the piece or parcel of land hereinbefore referred to the sum of two thousand pounds :

(2) For paying the costs and expenses of this Act as hereinafter provided the sum requisite for that purpose.

In order to secure the repayment of the moneys borrowed under this section and the payment of the interest thereon the Corporation may mortgage or charge the district fund and general district rate.

Periods for repayment of money borrowed.

29. The Corporation shall pay off all moneys borrowed by them under this Act within the respective periods following (that is to say) :—

As to moneys borrowed for the purpose (1) mentioned in the section of this Act the marginal note whereof is “Power to borrow” within fifty years from the date or dates of the borrowing of the same :

As to moneys borrowed for the purpose (2) in the said section mentioned within five years from the date or dates of the borrowing of the same.

For the purposes of section 148 of the Act of 1900 such respective periods shall be deemed to be the prescribed periods.

Certain provisions of Act of 1900 to apply.

30. The provisions of the West Bromwich Corporation Act 1900 contained in the following sections (that is to say) :—

Section 142. Certain regulations of Public Health Act 1875 as to borrowing not to apply ;

- Section 143 Mode of raising money ;
 - Section 144 Provisions of Public Health Act as to mortgages
to apply ;
 - Section 146 Mode of payment off of money borrowed ;
 - Section 148 Sinking fund ;
 - Section 149 Proceeds of sale of surplus lands to be treated as
capital ;
 - Section 150 Protection of lender from inquiry ;
 - Section 151 Corporation not to regard trusts ;
 - Section 152 Appointment of receiver ;
 - Section 153 Power to re-borrow ;
 - Section 155 Return respecting sinking fund to Local
Government Board ;
 - Section 158 Application of money borrowed ;
 - Section 162 Inquiries by Local Government Board ;
- shall subject to the provisions of this Act extend and apply mutatis
mutandis to and in relation to all moneys borrowed under the
powers of this Act.

31. All the costs charges and expenses preliminary to and of Costs of Act.
and incidental to the preparing applying for obtaining and passing
of this Act as taxed by the taxing officer of the House of Lords or
of the House of Commons shall be paid by the Corporation out of
the district fund and the general district rate or out of moneys to
be borrowed for the purpose under this Act.

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